

How to Send an Acknowledgement of Service

Instructions

An Acknowledgment of Service (Form 8.04A) is a form that proves to the Court that the other person has received your document(s). This form is a way to prove service.

When to use an Acknowledgement of Service

You may use an Acknowledgement of service if you are serving any of the following documents by regular mail, email, fax, or leaving a copy at the other person's address:

- Originating Application (Form F4.03A) for any issue(s) other than divorce or parenting
- Originating Application for Variation (Form 5.05A) for any issue(s) other than parenting
- Response (Form F6.02A) making a claim for any issue other than divorce or parenting

If you choose to send any of the above documents to the other person by regular mail or leaving a copy at the other person's address, you must attach this Acknowledgement of Service form to the document you are serving on the other person. If you choose to send any of the above documents to the other person by fax, you can choose to send an Acknowledgement of Service, or you can use a fax confirmation to prove service. If you choose to send any of the above documents to the other person by email, you can choose to send an Acknowledgement of Service, or you can use a reply email from the other person to prove service. In the reply email, the other person must write: "I, [name of recipient], accept service of [document(s) received] on [date document(s) was/were received]".

Completing the Acknowledgement of Service

Print your name, date, how you are serving the other person, and check off the documents you are sending to the other person. On the bottom of the Acknowledgement of Service, you must fill in the ways in which the other person may return the Acknowledgment of Service to you. You must also provide return address information.

Filing the Acknowledgement of Service

The other person needs to send the completed form back to you so that you can prove that you sent a copy to that person. When the Acknowledgment of Service is returned to you, you must file it with the Court. You can either bring it to a Supreme Court location near you or you can mail it to a Supreme Court location near you.

What to do if the Acknowledgment of Service is not returned to you

If the other person does not send the Acknowledgement of Service back to you, you may either:

- (a) serve the other person using a different acceptable method of service (eg. personal service or registered mail/courier); or
- (b) make an Interim Application for a Procedural Order (Form F16.03A) to validate service.

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SENDING THIS ACKNOWLEDGEMENT ---

How to Acknowledge Service

Instructions

You have been served with documents relating to a family law court proceeding.

You must immediately complete this Acknowledgement of Service (Form 8.04A) and immediately return it to the other person.

The other person has served you by regular mail, email, fax, or other form of electronic communication. In order to tell the other person and the Court that you have received these documents, you must fill out and sign the Acknowledgement of Service.

Fill in your name, which documents you were served with, and the date you were served. Sign the form.

You may send the Acknowledgement of Service in any of the method(s) indicated at the bottom of the form.

If you do not return the Acknowledgement of Service, the documents may be served on you in another manner and you may have to pay for the costs of service.

If you were served with documents by email, you can do either of the following:

- (a) Fill out and send this Acknowledgement of Service; or
- (b) Send a reply email to the other person instead of an Acknowledgement of Service. In your reply email, you must write: "I, [name of recipient], accept service of [document(s) received] on [date document(s) was/were received]".

More Information

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--- REMOVE THIS PAGE BEFORE RETURNING THE ACKNOWLEDGEMENT ---

Form F8.04A: Acknowledgement of Service (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ APPLICANT
(Print full name)

AND: _____ RESPONDENT
(Print full name)

AND: _____
(Print full name)

☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT

I acknowledge that I, _____, received a copy of the following documents:
(Print your name)

- | | | |
|--|--|---|
| ☐ Originating Application | ☐ Originating Application for Variation | ☐ Response |
| ☐ Reply | ☐ Financial Statement | ☐ Property Statement |
| ☐ Other (Specify): _____ | | |

on _____
(Date: month/day/year)

I was served by: ☐ Regular mail ☐ Email ☐ Fax ☐ Other : _____

Signature

Return to: (name)

☐ Mailing Address:

☐ Email:

☐ Fax:

☐ Other: